

In T. 808/94 the board stated that informal interviews (also called "personal consultation") and/or informal consultations by telephone which were carried out by the primary examiner alone could not replace duly requested oral proceedings under Art. 116 EPC 1973, which were to take place before all members of the examining division (Art. 18(2) EPC 1973).

3. The grant stage in examination

By decision of the Administrative Council CA/D 2/10 of 26 October 2010 (OJ 2010, 637), R. 71 EPC's paragraphs 3 to 7 of were amended, its paragraphs 8 to 11 were deleted and new R. 71a EPC was inserted. The provisions as amended entered into force on 1 April 2012.

R. 71 EPC governing the last phase of the grant proceedings has been split into two separate rules: new R. 71 EPC focuses on the work of the examining division and R. 71a EPC on issues which arise when the grant procedure is concluded and which are mainly dealt with by the formalities officer acting on behalf of the division.

3.1. Informing applicant of the text intended for grant (Rule 71(3) EPC)

New R. 71 EPC reinstates the pre-2002 practice concerning changes to the text intended for grant suggested by the examining divisions. The new text of R. 71(3) EPC (R. 51(4) EPC 1973), which entered into force on 1 April 2012, reads as follows: "Before the examining division decides to grant the European patent, it shall inform the applicant of the text in which it intends to grant it and of the related bibliographic data. In this communication the examining division shall invite the applicant to pay the fee for grant and publishing and to file a translation of the claims in the two official languages of the European Patent Office other than the language of the proceedings within four months."

Thus once the examining division has decided that a patent can be granted it must inform the applicant of the text on the basis of which it intends to do so. This text may include amendments and corrections made by the examining division on its own initiative which it can reasonably expect the applicant to accept. (Guidelines C-V, 1.1 – March 2022 version).

In T. 1849/12 the appellant asked for the withdrawal of the examining division's communication, and requested that the examining division be instructed to issue the communication under R. 71(3) EPC without delay – specifically before the expiry of 18 months from the priority date – and therefore to grant the European patent as quickly as possible. The board noted that Art. 93(2) EPC provided for the possibility of granting a patent before the expiry of the 18-month period. An earlier grant was thus not ruled out, provided the examining division had already concluded that the application met all the requirements of the EPC. As this was not yet so in the case in hand, the possibility provided for in Art. 93(2) EPC of granting a patent before the 18 months expired did not apply. The board did not see any conflict in this regard between the provisions of Art. 93(2) and 97(1) EPC. Under the EPC, the granting of a patent was conditional upon the mandatory examination of all EPC requirements. A patent could only be granted if the examining division considered all examination requirements met. Contrary to the

appellant's claim, the examining division had no discretion in this regard. It had to be taken into account that the EPO was responsible for safeguarding the interests of the public, in addition to those of the appellant, and the public had to be able to rely on it doing so.

In T 1377/15 the board pointed out that a communication under R. 71(3) EPC, even when taken as a whole, did not have the character of a "decision". It was not designed to bring examination proceedings to a close but was instead a preparatory action (taken towards any later decision to grant a European patent) which was not open to appeal. The board observed that the communication the appellant had received under R. 71(3) EPC – unlike the one under R. 51 EPC 1973 at issue in T 1181/04 – had expressly referred to the possibility of expressing disapproval and subsequently obtaining an appealable decision giving the reasons for refusing the higher-ranking requests. It therefore held that the conditions set out in T 1181/04 for exceptionally treating such a communication as an appealable decision were not met. Besides, the communication at issue in T 1181/04 had been based on R. 51 EPC 1973 as then in force; that provision, now renumbered as R. 71 EPC 2000, had been amended in the meantime.

For more on the examination procedure under the previous system (R. 71 EPC and R. 51(4) EPC 1973), see Case Law of the Boards of Appeal, 9th ed. 2019, IV.B.3.2.5.

3.2. Approval of the text by the applicant

3.2.1 Clear and unambiguous approval of the text

A number of decisions commented on below relate to earlier versions of former R. 51(4) EPC 1973 (now R. 71(3) EPC, version 2012). Nevertheless, they may also be applicable to the new R. 71(3) EPC.

a) Rule 71(3) EPC, in the version applicable up to 1 April 2012

In J 12/83 (OJ 1985, 6) the Legal Board held that an applicant for a European patent could be "adversely affected", within the meaning of Art. 107 EPC 1973, by a decision to grant the patent if the patent were granted with a text not approved by the applicant, contrary to Art. 97(2)(a) EPC 1973. Approval, for the purposes of that Article, had to be established "in accordance with the provisions of the Implementing Regulations" (here R. 51(4) EPC 1973).

In J 13/94 the Legal Board observed that any approval of the text, in accordance with R. 51(4) EPC 1973, might thus have serious procedural consequences for applicants. Hence, according to the case law of the Legal Board, declarations by applicants should only be treated as valid approval under R. 51(4) EPC 1973 if they are clear and unambiguous which, in particular, implied that: the approval was not subject to any condition (J 27/94, OJ 1995, 831); it was clear to which text the applicant had given his approval (J 29/95, OJ 1996, 489).

In J 27/94 (OJ 1995, 831) the Legal Board held that in the interests of legal certainty a procedural declaration had to be unambiguous (confirming J 11/94, OJ 1995, 596). This

implied that it must not be subject to any condition, leaving it open whether the EPO could proceed further on the basis thereof. It found that the examining division should not have treated the letter in question as valid approval under R. 51(4) EPC 1973, because it contained a condition which made the approval invalid. The approval of the text intended for grant was a necessary requirement for the next step in the proceedings, i.e. the communication under R. 51(6) EPC 1973. It had to be clear for the EPO when receiving the declaration whether or not it was an appropriate basis for the despatch of this communication. In the interests of legal certainty the Legal Board stated that procedural declarations had to be unambiguous. The examining division should have objected to the invalid approval, with the eventual consequence foreseen in R. 51(5), first sentence, EPC 1973.

In T 971/06 the board noted that the approval by an applicant or patent proprietor under Art. 97(2)(a) EPC 1973 was a principle underlying all decisions of the EPO (see Art. 113(2) EPC 1973). Accordingly, it was perfectly clear that it was an absolute pre-condition of any decision of the examining division to grant a patent that an applicant had to have consented to the proposed text. If that pre-condition were not fulfilled, the only courses of action open to the examining division would be to refuse the application under Art. 97(1) EPC 1973 or, if possible amendments or corrections remained to be considered, to continue the examination. So strict was the approval condition that, as the case law showed, the only valid approval was that which was unconditional, unambiguous and clear (see J 13/94; J 27/94, OJ 1995, 831; J 29/95, OJ 1996, 489). The board held that in the absence of a valid approval, the examining division had no power to make a decision to grant and any decision to grant purportedly made without the applicant's valid approval could have no legal effect.

In T 872/90 the board held that, in view of the requirement of Art. 113(2) EPC 1973 according to which the EPO would consider and decide on the European application only in the text submitted to it, or agreed, by the appellant, former claims which had been replaced by newly filed claims could no longer be considered to constitute a text agreed to by the applicant.

In T 1/92 (OJ 1993, 685) the board held that the applicant's approval of the text was only binding if it was still unambiguously present at the expiry of the R. 51(4) EPC 1973 period. The appellant had first approved of the proposed text for grant, before submitting requests, within the period given in the R. 51(4) EPC 1973 communication, and before the communication under R. 51(6) EPC 1973, to disregard the prior approval and to extend the time limit for responding to the R. 51(4) EPC 1973 communication. The request to disregard the approval, being on time, made it impossible for the EPO to establish as required by R. 51(6) EPC 1973 that the approval still was maintained unambiguously.

b) Rule 71(3) EPC, in the version applicable from 1 April 2012

In T 2864/18 the appellant, in its reply to the first communication under R. 71(3) EPC, had requested certain corrections in the translations of the claims and then proceeded to state "All the other pages of the text enclosed to the Communication under R. 71(3) EPC do not require amendments or corrections and are hereby approved by the Applicant". From

these statements the board inferred that the appellant was fully aware of the complete set of documents proposed as forming the basis for the intended grant. It found that the approval of the text was unequivocal and was repeated, albeit not explicitly in writing, but by reacting to the second communication under R. 71(3) EPC (payment of fees).

In T 646/20 the board found no support for any obligation of the examining division to defer a decision of grant until the expiry of the four months period in a case where the applicant had at any given time within this period of time given approval to grant and thereby allowed the examining division to issue a corresponding decision. It found it would be rather strange if the examining division had to defer a decision for the eventuality that the applicant had second thoughts. In the case in hand, following the R. 71(3) EPC notification, the applicant gave its explicit approval to issue the decision to grant, however following the decision to grant, the appellant then voiced its disapproval. The board distinguished the case in hand from T 1/92 (OJ 1993, 685; see above in this chapter). It was also not convinced by the appellant's argument that an approval sent in response to a R. 71(3) EPC communication could not be interpreted as a waiver of further options or remedies. Every approval of the text of a patent implied a waiver of the remaining infinity of texts in which a patent could be granted.

3.2.2 Option to waive the right to a further communication under Rule 71(3) EPC

From 1 July 2015 until 30 June 2020, the EPO offered applicants the option of expressly waiving their right to receive a further communication under Rule 71(3) EPC (see notice from the EPO dated 8 June 2015; OJ 2015, A52). This option was abolished by notice from the EPO dated 26 May 2020 (OJ 2020, A73).

3.2.3 Decisions with no text submitted or agreed by the applicant (Article 113(2) EPC)

a) General issues

Art. 113(2) EPC states that the EPO shall examine, and decide upon, the European patent application or the European patent only in the text submitted to it, or agreed, by the applicant or the proprietor of the patent. See also Guidelines C-V, 4.9 – March 2022 version.

In T 690/09 the board stated that the application would be refused under Art. 97(2) EPC, if there was no text which had been approved by the applicant and allowed by the examining division (see Art. 113(2) EPC 1973, T 647/93, OJ 1995, 132; T 946/96; T 237/96).

In T 1093/05 the board noted that to grant a patent in a text not approved by the applicant was in breach of Art. 97(2)(a) and 113(2) EPC 1973 and thus a substantial procedural violation. The board stated that in those circumstances it was established case law that an examining division was bound by its final decision on an application, which could be set aside only following an admissible, reasoned appeal (see G 12/91, OJ 1994, 285; G 4/91, OJ 1993, 707; T 371/92, OJ 1995, 324; T 1081/02; T 830/03). In view of this established

case law, the board could not subscribe to the view expressed in T. 971/06 that an erroneous decision was a nullity and therefore no appeal needed to be filed against it.

In T. 237/96 the board noted that in circumstances in which, as in the case in question, amendments proposed by the applicant were not allowed by the examining division by virtue of R. 86(3) EPC 1973 and the applicant did not give its agreement to any other version of the application documents, the established practice of the EPO, sanctioned by consistent case law, was to refuse the application on the ground that there was no version approved by the applicant within the meaning of Art. 113(2) EPC 1973 on which a patent could be granted.

Some decisions showed a different approach concerning the legal basis for refusing an application where no agreed claim text existed. In T. 246/08 the board held that the substantive legal requirement for the continued presence of claims in an application was expressed in Art. 78(1)(c) EPC 1973, not in Art. 113(2) EPC 1973. It noted that Art. 78(1)(c) EPC 1973 was a requirement of the application not only for a filing date, but also for substantive examination and grant, whereas Art. 113(2) EPC 1973 was silent as to the legal consequence of the absence of an agreed text (see also T. 2112/09).

In T. 32/82 (OJ 1984, 354) the board held that in accordance with Art. 113(2) EPC 1973, it could only decide on the European patent application in the text submitted to it or agreed by the applicant. It followed that when deciding the appeal the board had no authority under the EPC to order the grant of a European patent containing claims which were different from those submitted by the applicant in their content or interdependency. Even if the board had indicated to an applicant that a dependent claim might be allowable if rewritten as an independent claim but the applicant had not expressly requested the board to consider it as such, the board was not obliged to do so.

In T. 647/93 (OJ 1995, 132) the board stated that the provision of Art. 113(2) EPC 1973, that the EPO shall consider and decide upon the European patent application or the European patent only in the text submitted to it, or agreed, by the applicant for or proprietor of the patent, was a fundamental procedural principle, being part of the right to be heard, and was of such prime importance that any infringement of it, even as the result of a mistaken interpretation of a request, must, in principle, be considered to be a substantial procedural violation. In any case, such violation occurred when, as in the case in hand, the examining division did not make use of the possibility of granting interlocutory revision under Art. 109 EPC 1973, after the mistake had been pointed out in the grounds of appeal. See also T. 121/95.

b) Deemed approval under Rule 71(5) EPC

If applicants pay the fees and files the translations within the due period (and files or requests no corrections or amendments to the text proposed for grant in the R. 71(3) EPC communication), they are deemed to have approved the text intended for grant (R. 71(5) EPC) (see Guidelines C-V, 1.1 – March 2022 version).